

**United States Department of Agriculture
Justification to Restrict Competition under FAR Part 8
Over the Simplified Acquisition Threshold
Identification Number:**

In accordance with the Federal Acquisition Regulation (FAR) 8.4 and General Services Administration Acquisition Manual (GSAM) 538.7104-3 (b), the following justification documents the decision to restrict competition for this acquisition.

(1) Mission Area and Contracting Activity.

Requisition Number: TBD

Requesting Activity Agency: USDA Office of the Chief Information Officer (OCIO)

Contracting Activity: USDA Office of Contracting and Procurement (OCP), Procurement Operations Division (POD)

(2) Nature and/or description of the action being approved.

This limited source justification supports the establishment of a firm fixed-price delivery order under the GSA Multiple Award Schedule (MAS), Information Technology (IT) for Palantir Platform solutions in support of USDA's ROOTS Tool.

These services are commercial in nature and will be procured utilizing the procedures listed in FAR Part 8 and GSAM 538.71.

The suggested contractor is:

Palantir Technologies Inc.

1200 17th Street

Floor 15

Denver, CO 80202

UEI: FSY4LVSBGWB7

(3) A description of the supplies or services required to meet the agency's needs (including the estimated value).

The delivery order will provide specialized software licenses, configuration services, integration support and operational capabilities necessary to continue the design and full deployment of the ROOTS Tool.

To comply with the President's Return To Office Executive Order (EO) and OMB-OPM Joint Memo Re: Agency Return To Office Implementation Plans, all federal departments are required to submit, implement, and report on return-to-office plans. USDA OCIO requires advanced data integration capabilities to consolidate information from multiple sources, real-time analytics to optimize space utilization and employee seat assignments, and robust security compliance to protect sensitive organizational data. These features are critical because they enable efficient decision-making, ensure compliance with federal regulations, and enhance overall operational effectiveness.

United States Department of Agriculture
Justification to Restrict Competition under FAR Part 8
Over the Simplified Acquisition Threshold
Identification Number:

This requirement is for mission-critical capabilities, including real-time data fusion, operational planning, logistics optimization, and intelligence analysis, all delivered within secure, accredited internal USDA and mission partner network environments spanning FedRAMP High and higher standards for Controlled Unclassified Information (CUI) and National Security Systems (NSS) information, such as DOD's Impact Levels (IL)-4 and IL-5.

The diverse configurations of the Palantir Platform encompassing advanced AI/ML capabilities, data integration, operational planning tools, and secure cloud services consistently operate across classified and unclassified environments. This consistent security posture is enabled by leveraging the PFCS and Software as a Service (SaaS) offering, which are already accredited to meet stringent security requirements.

Palantir platform's existing accreditations ensure compliance with these policies, eliminating the need for additional efforts and costly delays and expenses that would occur if other vendors had to obtain equivalent certifications.

The commercial product, which already meets the USDA's security and compliance criteria and holds a USDA ATO, allows for speedy implementation to meet USDA mission needs in a matter of days, not years.

Specific technical requirements include, but are not limited to, implementing real time and continuous compliance monitoring with automate risk or alert generation of regulatory compliance officers and other personnel upon detection of threats or anomalies, in addition to establishing complete transaction logging and compliance documentation capabilities across all integrated tools and workflows for regulatory reporting and oversight activities. This includes implementing standardized integration protocols and Application Programming Interfaces (APIs) that maintain existing security controls, audit trails, and data privacy protection across all system interfaces.

It is anticipated that one (1) task order consisting of one (1) six-month base period and two (2) six-month option periods will be awarded. The estimated total for the base year plus all options is

██████████ as shown below:

Period	Fiscal Year	Total
BASE Period	FY26	██████████
Option 1	FY27	██████████
Option 2	FY27	██████████
Grand Total		██████████

(4) Identify the statutory authority permitting other than full and open competition.

The statutory authority supporting the placement of an order or establishment of a Federal Supply Schedule Blanket Purchase Agreement (BPA) that exceeds the Simplified Acquisition Threshold (SAT) on a sole source basis is: GSAM 538.7104-3 (b)(ii) - Only one source is capable of providing the products, services, or solution required at the level of quality required because the products, services, or solutions are unique or highly specialized.

**United States Department of Agriculture
Justification to Restrict Competition under FAR Part 8
Over the Simplified Acquisition Threshold
Identification Number:**

(5) Demonstrate that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited.

Palantir is the only vendor capable of providing the required capabilities in Section 3 above without unacceptable delays and significant duplication of effort to the Government.

Specifically, accreditation efforts for another vendor would introduce substantial delays, requiring accreditation and system rebuilds, leading to unacceptable operational duplicative effort, and impact on mission disruption.

This integration encompasses a uniquely tailored framework developed through significant collaborative efforts with USDA mission area personnel. Achieving the necessary accreditations for FedRAMP High, DoD Impact Levels (IL)-2, IL-4, IL-5, and IL-6, as well as mission partner environment, would require a new contractor to invest significant time and resources. Full accreditation at the DoD Impact Level 5 (IL5), as defined in the US Department of Defense (DoD) Cloud Computing Security Requirements Guide (CC SRG), which is also based on NIST 800-53. By proceeding with this Palantir order, the Government can avoid fragmented contracting efforts, increase efficiencies, ensure transparency, cost efficiency, scalability, and rapid access to Palantir's capabilities.

Palantir satisfies the following compliance frameworks which are part of the overall Palantir platform solution:

Service Organization Control (SOC):

SOC 1

SOC 2

SOC 3

Alignment with FISMA High.

Certifications in the following:

ISO/IEC 27001:2022

ISO/IEC 27017:2015

ISO/IEC 27018:2019

ISO/IEC 9001:2015

Palantir Technologies can deliver the high volume and scope of the work required and with the necessary interoperability capabilities needed for both existing and future systems to strengthen and maintain key USDA agricultural systems that are designated as critical infrastructure.

Additionally, Palantir's agile development approach enables rapid adaptation to evolving requirements, a capability that has not been demonstrated by other developers. This speed and flexibility are essential for meeting the dynamic needs of USDA OCIO, ensuring that the software evolves alongside organizational demands.

Salesforce and similar applications have not demonstrated a product that has advanced data integration capabilities or the agility required to address rapidly changing requirements. Palantir is the only software that offers all of the features that OCIO requires, making it the sole solution capable of meeting USDA OCIO's facility and employee seat management needs effectively.

**United States Department of Agriculture
Justification to Restrict Competition under FAR Part 8
Over the Simplified Acquisition Threshold
Identification Number:**

(6) A determination by the Contracting Officer that the order represents a fair and reasonable price.

The Contracting Officer has determined that the proposed order represents the best value to the Government, considering price and other factors, consistent with GSAR 538.7102-2 Federal Supply Schedule Ordering Procedures. A fair and reasonable price determination will rely on analysis of the contractor's GSA Schedule pricing, comparison to historical pricing paid by the Government and additional pricing discounts.

(7) A description of the market research conducted among schedule holders and the results, or a statement of the reason Market Research was not conducted.

Based upon market research, while there are several companies that provide data analytics and integration platforms, Databricks, Snowflake, IBM, SAS, Salesforce, and Alteryx, none offer the combination of capabilities, enterprise scale data fusion, real-time analytics, compliance monitoring and integration with existing USDA systems that Palantir provides. Palantir is the only vendor capable of integrating USDA's diverse data sources into a unified platform, providing real-time monitoring of facility and employee seat management, maintaining existing security controls across all integrated tools and supporting the highly specialized workflows within the USDA's systems. Because these unique qualifications are essential to meeting USDA's mission critical requirements, the capabilities and solutions offered by Palantir represent the most viable option for achieving USDA objectives.

(8) Any other facts supporting use of other than full and open competition, such as:

While other MAS vendors offer analytic or integration services, none provide a platform or service suite capable of delivery the required mission-critical, real-time system integration capabilities or interoperability with existing USDA Palantir components.

(9) A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition of the supplies or services required.

USDA will maintain unlimited rights and ownership to all Government data, documents, and computed data properties, which will enable future competition when market research identifies competitors able to meet the necessary requirements.

**United States Department of Agriculture
Justification to Restrict Competition under FAR Part 8
Over the Simplified Acquisition Threshold
Identification Number:**

(10) Certifications & Approvals

Technical / Requirements Personnel Certification

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

[Redacted Signature]

Name: [Redacted] Date
Title: [Redacted]

(11) Contracting Officer's Certification

I certify that the data supporting the recommended use of other than full and open competition accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Name: [Redacted] Date
Contracting Officer

(12) Competition Advocate (greater than \$900,000 but not exceeding \$20M).

I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as advocate for competition for the procuring activity, I hereby approve this justification. If required, my approval constitutes clearance for submission to the Head of the Contracting Activity (HCA).

[Redacted Signature]

Name of Chief of the Contracting Office (COCO): [Redacted] Date
Competition Advocate